

Dinesh Chandra v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 August 2014 · Writ-C No. 43415 of 2014 · **Writ disposed; petitioner relegated to Clause 6.14 instalment representation.**

HEADNOTE

A consumer challenging a recovery citation for electricity dues, and offering to pay in instalments, was relegated to Clause 6.14 of the U.P. Electricity Supply Code, 2005. Counsel for the distribution licensee accepted that the Executive Engineer, DGM and General Manager may grant instalments to consumers in financial distress. The Court directed a representation within three weeks, to be decided in accordance with law preferably within one month.

FACTUAL SUMMARY

Dinesh Chandra challenged a citation dated 14 July 2014 issued by Dakshinanchal Vidyut Vitran Nigam Ltd. for recovery of Rs.34,882 towards electricity consumption. Before the Allahabad High Court he offered to deposit the entire amount in instalments. Counsel for the Corporation stated that Clause 6.14 of the U.P. Electricity Supply Code, 2005 empowers the Executive Engineer, DGM and General Manager to extend instalments to consumers in financial distress, and that the petitioner could approach those authorities with a representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for consumers in financial distress

HOLDING

Where a consumer facing a recovery citation for electricity dues is ready to pay in instalments, the writ court will not examine the citation on merits but will relegate him to Clause 6.14 of the U.P. Electricity Supply Code, 2005, under which the Executive Engineer, DGM and General Manager may grant instalments to consumers in financial distress; any representation made within three weeks is to be decided in accordance with law, preferably within one month. ¶ 1

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress Clause 6.14 was treated as the statutory route for a consumer in financial distress seeking instalments against a recovery citation; the writ was disposed with a time-bound representation rather than a merits order on the citation. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION AND THE QUANTUM OF RS.34,882 CLAIMED AS ELECTRICITY DUES

The Court did not examine the citation dated 14.07.2014 on merits; it only granted liberty to seek instalments under Clause 6.14.

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